

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

AIRBOSS DEFENSE GROUP, LLC, *Complainant*

v.

DOCKET NO. 24-14

FEDEx TRADE NETWORKS TRANSPORT & BROKERAGE, INC.;
MEDITERRANEAN SHIPPING COMPANY S.A. AND
MEDITERRANEAN SHIPPING COMPANY (USA) INC., AS
AGENT FOR MEDITERRANEAN SHIPPING COMPANY S.A.; AND
TOTAL TERMINALS INTERNATIONAL, LLC, *Respondents*.

Served: June 11, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER ON COMPLAINANT’S FIRST MOTION TO EXTEND TIME TO FILE A RESPONSE

On April 8, 2024, Respondents FedEx Trade Networks Transport & Brokerage, Inc. (“FedEx”); Mediterranean Shipping Company S.A. and Mediterranean Shipping Company (USA) Inc., as Agent for Mediterranean Shipping Company S.A. (collectively, “MSC”); and Total Terminals International, LLC (“Total Terminals”) (collectively, “Respondents”), filed a Joint Motion for Extension of Time to File a Response (“Respondents’ Motion to Extend”) seeking a 30-day extension of time to respond to the complaint.

On April 16, 2024, an order issued granting a 25-day extension of time to May 10, 2024.

On May 1, 2024, Respondents filed an Urgent Joint Motion for Extension of Time to File a Response (2nd Motion to Extend), again seeking a 30-day extension of time to respond to the complaint.

On May 6, 2024, an order issued granting a 21-day extension of time to May 31, 2024, finding good cause for further extension in part because Respondents asserted that they would also work on a global resolution to the issues presented in the complaint. On May 31, 2024, instead of a global resolution, Respondents each submitted motions to dismiss, with some also seeking summary judgment as an alternative.

On June 7, 2024, more than 7-days before the due date of Complainant’s responses to the multiple motions to dismiss, Complainant filed an Unopposed Motion for Enlargement of Time to File Responses to Respondents’ Motions to Dismiss the Complaint “Complainant’s Motion to Extend.” Complainant states that the “number of MTDs served on the same date, the complexity and variety of the issues that the MTDs raise and the relief they seek, and the prepaid and planned family obligations, [including] the graduation ceremony of counsel for Complainant

[sic] daughter” are good cause reasons for an extension of time to July 12, 2024, to reply to Respondents’ motions. Complainant’s Motion to Extend at 2.

In the future, Complainant should be more specific regarding the timeframe of personal obligations when seeking an extension of time (*i.e.*, “family trip June 17-24, 2024” or “family vacation the week of June 24-30, 2024”). However, even without a more specific statement of when the personal obligations are scheduled, Complainant has established good cause for an enlargement of time to file responses to the three motions to dismiss. In this regard, I note that the Respondents’ motions assert different grounds for dismissal and also seek summary judgment as an alternative. Moreover, Respondents received two extensions of time to respond to the complaint, which Complainant did not contest. Accordingly, the motion is **GRANTED**. Complainant is **ORDERED** to file its responses to the motions to dismiss/summary judgment by July 12, 2024.

The parties are encouraged to review the Initial Order at paragraph 5, where it states that “[t]he Commission recently switched to Westlaw. Citations to opinions on Lexis should include a parallel citation to Westlaw, if possible.” Initial Order at 2.

The parties are also reminded that if a settlement agreement is reached, it must be submitted to the undersigned with a motion for approval.



Linda S. Harris Crovella
Administrative Law Judge